

Strategic Analysis of Procedural Roles, Burden of Prosecution, and Financial Implications in Polish Criminal Fraud Proceedings

The Polish criminal justice system operates under a fundamentally different structural architecture than civil litigation or the adversarial models characteristic of common-law jurisdictions. For a foreign victim residing in Poland—specifically, a victim of a suspected high-value commercial fraud under Article 286 § 1 of the Polish Penal Code (Kodeks karny, hereinafter "KK") involving an undelivered goods transaction valued at 155,000

PLN—understanding the precise allocation of the procedural burden is paramount. The immediate, definitive, and foundational answer to the core procedural inquiry is that the State assumes the overwhelming burden of running the criminal case. The public prosecutor, supported by the police apparatus, is legally obligated to investigate and prosecute the suspected fraud entirely at the expense of the State Treasury (Skarb Państwa).

The victim is absolutely not required to hire a private lawyer to "run the case," nor is the victim expected to personally gather complex evidence, trace bank transfers, or bear the financial weight of the prosecution. Relying purely on the State apparatus is a genuinely viable and financially cost-free pathway, provided the victim understands how to strategically navigate their statutory rights. The following comprehensive report delineates the intricate mechanics of the Polish criminal procedure, the strategic role of the victim, the nuances of court-appointed legal counsel, the logistical realities of participating in the process as a non-Polish speaker, and a meticulous projection of potential out-of-pocket costs.

The Doctrinal Foundation: The Allocation of the Procedural Burden

To fully grasp the dynamics of a Polish criminal investigation, one must first understand the fundamental legal doctrines that compel the State to act. The burden of prosecuting economic crimes does not rest on the aggrieved individual; it is an obligation assumed by the sovereign.

The Principle of Legalism and Ex Officio Prosecution

The foundational pillar of Polish criminal procedure is the principle of legalism (*zasada legalizmu*), which is strictly codified in Article 10 of the Code of Criminal Procedure (Kodeks postępowania karnego, hereinafter "KPK"). This procedural imperative dictates that the prosecuting authority—the public prosecutor (*prokurator*) and the police acting under prosecutorial supervision—is legally bound to initiate preparatory proceedings (*postępowanie przygotowawcze*) and vigorously pursue any act that fulfills the statutory criteria of a publicly prosecuted offense, provided there is a justified suspicion (*uzasadnione podejrzenie*) that the crime has occurred.

The suspected offense in the current factual matrix involves a commercial fraud concerning an undelivered goods transaction, allegedly perpetrated by individuals operating under a corporate or commercial moniker such as GPUcomputer. Article 286 § 1 KK criminalizes the act of causing another person to disadvantageously dispose of their own or a third party's property by deceiving them, or by exploiting their mistake or inability to adequately understand the action undertaken, in order to achieve a financial benefit.¹

Crucially, the crime of fraud under Article 286 § 1 KK is a publicly prosecuted offense (przestępstwo ścigane z urzędu).¹ This fundamental classification signifies that the crime is pursued ex officio. It is not a private prosecution (oskarżenie prywatne), wherein the victim would be forced to independently draft the indictment, gather all admissible evidence, and present the case in court single-handedly. Once a credible and formalized notification of a suspected crime (zawiadomienie o podejrzeniu popełnienia przestępstwa) is filed by the victim, the state machinery is automatically activated.

From the moment the notification is registered, the State assumes the responsibility and the associated financial costs of deploying a vast array of investigative tools that are entirely unavailable to a private citizen. The public prosecutor holds the sovereign authority to issue binding subpoenas to financial institutions to trace the flow of the 155,000 PLN, demand telecommunication data from service providers to locate IP addresses and communication nodes associated with the suspects, issue search warrants to secure hardware or physical accounting documents from the suspects' commercial premises, and compel the testimony of co-conspirators, employees, or suppliers under the severe threat of perjury. The victim is neither expected nor legally permitted to execute these sovereign investigative functions. The financial burden of these actions—ranging from forensic accounting audits to cybercrime analysis—is borne entirely by the State Treasury.

Dissecting the Statutory Exception: Article 286 § 4 KK

A rigorous legal analysis must address the narrow statutory exception embedded within the fraud provision itself, found in Article 286 § 4 KK. This specific clause stipulates that if the fraud is committed to the detriment of a "close person" (osoba najbliższa), the prosecution occurs only upon the formal motion of the victim (tryb wnioskowy).¹ In such cases, while the State still conducts the investigation, it cannot proceed without the explicit, ongoing consent of the aggrieved family member.

To determine the applicability of this caveat, one must consult the statutory definition of a "close person." Under Article 115 § 11 KK, a close person is strictly and exhaustively defined as a spouse, an ascendant (parent, grandparent), a descendant (child, grandchild), a sibling, a relative by affinity in the same line or degree, a person in an adoptive relationship, or a person living in common-law cohabitation.

Given the factual matrix of a purely commercial transaction involving a Swedish resident and an external, independent Polish vendor operating as GPUcomputer, the perpetrators are clearly arm's-length commercial actors. They share no familial, adoptive, or domestic bonds with the victim. Therefore, the restrictive caveat of Article 286 § 4 KK is entirely inapplicable to this scenario. The crime remains unequivocally subject to ex officio public prosecution under the

standard regime. The initial filing of the notification is sufficient to trigger the State's obligatory and irrevocable action, requiring no subsequent motions to sustain the prosecutorial mandate.

The Victim's Procedural Standing in the Preparatory Phase

While the State bears the heavy burden of the investigation and evidence gathering, the victim (pokrzywdzony) is not relegated to the status of a mere passive witness or bystander. The Polish Code of Criminal Procedure endows the victim with a robust, highly structured suite of participatory rights designed to allow them to monitor, influence, and shape the trajectory of the investigation without needing to formally "run" it or finance it.

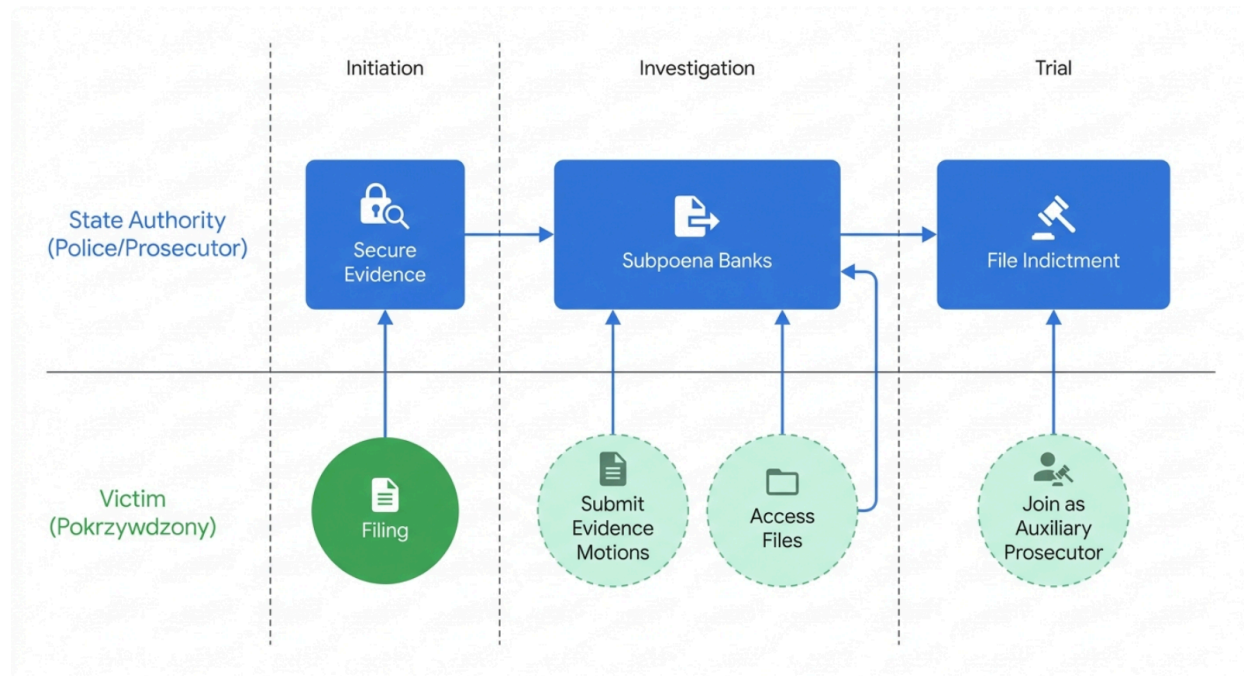
Rights of Information and Evidentiary Initiative

During the investigative phase, which takes the form of either a formal inquiry (dochodzenie) or a more rigorous investigation (śledztwo) depending on the assessed complexity of the fraud, the victim acts as an independent party to the proceedings. This elevated status grants the immediate right to be continually informed about the substantive progress of the case. The prosecuting authority is legally mandated to notify the victim of the formal initiation of the investigation, the presentation of formal charges against the specific suspects, the application of any preventive measures (such as bail, travel bans, or pre-trial detention), and the scheduling of significant procedural activities. Furthermore, the victim holds the right to indicate a trusted person to be present alongside them during any procedural activities involving their participation, provided it does not hinder the proceedings.⁶

However, the most powerful strategic tool at the victim's disposal is the right to submit evidentiary motions (wnioski dowodowe). The police and prosecutors, dealing with high caseloads, may initially adopt a superficial approach to a commercial dispute. If the victim observes that the authorities are overlooking a critical investigative angle—for instance, failing to investigate a suspected co-perpetrator who facilitated the transaction, or neglecting to secure specific server logs proving the deceptive intent—the victim can submit a formal written request demanding that the prosecutor secure this specific evidence.

The prosecutor is statutorily obliged to formally consider these motions. They cannot be ignored. The prosecutor can only reject an evidentiary motion on narrow, statutorily defined grounds delineated in the Code of Criminal Procedure—such as if the proposed evidence is legally inadmissible, definitively irrelevant to establishing the facts of the case, or physically impossible to conduct. If a motion is rejected, the prosecutor must issue a formal, written decision providing legal justification. This mechanism empowers a proactive victim to effectively steer the investigation's focus, utilizing the vast resources of the State, without requiring the intervention of paid legal counsel.

Procedural Burden and Strategic Intervention Points in Publicly Prosecuted Fraud



The State assumes the investigative burden upon the filing of the crime report. The victim's essential duties are limited, while optional strategic rights allow for significant influence without assuming prosecutorial responsibility.

Accessing the Case Files and Remediating Prosecutorial Inertia

To effectively utilize the right to submit precise evidentiary motions, the victim must know what evidence the police have already successfully gathered. Consequently, the victim possesses a statutory right to request access to the physical and digital case files (dostęp do akt). Under Article 156 § 5 of the KPK, providing access to the files during the active preparatory proceedings is technically subject to the discretionary consent of the leading prosecutor.⁷ The prosecutor may temporarily deny access to protect the integrity of ongoing covert operations or to prevent the collusion of suspects. However, this access becomes virtually obligatory towards the final stages of the investigation when the suspect is given access to review the materials, or if a formal motion for pre-trial detention has been filed with the court.⁷

If the prosecutor refuses access to the files during the ongoing investigation, the victim is not left without recourse. The victim possesses the right to file an interlocutory appeal (zażalenie). Depending on the specific procedural timeline and the nature of the denial, this appeal is directed either to the superior prosecutor or directly to the court overseeing the investigation.⁸ This ensures an independent review of the prosecutor's decision to restrict information. Furthermore, the victim serves as a critical structural check against prosecutorial inertia or

systemic inefficiency. If the prosecutor decides to discontinue the investigation (umorzenie postępowania) or refuses to initiate it altogether—perhaps citing a lack of sufficient evidence, an inability to identify the perpetrators, or erroneously mischaracterizing the complex commercial fraud as a mere civil breach of contract—the victim is formally notified and provided with a detailed written justification of the decision.

Upon receiving a decision to discontinue, the victim has the right to file an interlocutory appeal against this decision to the competent district court (zażalenie na postanowienie o umorzeniu) under Article 306 KPK. The court will independently and rigorously review the entire physical case file. If the adjudicating judge agrees with the victim's argumentation that the investigation was premature, superficial, or legally flawed, the court will overturn the prosecutor's decision to discontinue. More importantly, the court will issue legally binding instructions detailing exactly what specific evidentiary steps the police and prosecutor must undertake next. This acts as a highly effective corrective mechanism, ensuring the State fulfills its statutory mandate to exhaust all investigative avenues, entirely without the victim incurring the cost of an independent investigation.

The Transition to the Trial Phase: The Auxiliary Prosecutor

Assuming the preparatory phase yields sufficient evidence to substantiate the fraud charges against the perpetrators, the prosecutor will draft and submit a formal public indictment (akt oskarżenia) to the relevant court. At this critical juncture, the procedural landscape shifts dramatically, and the victim is presented with a vital strategic choice regarding their role in the ensuing judicial trial.

The Strategic Imperative of Joining the Indictment

Once the public indictment is filed with the court by the state prosecutor, the victim has the statutory right to actively act as a formal party in the trial proceedings by declaring their intention to act as an auxiliary prosecutor (oskarżyciel posiłkowy) alongside the public prosecutor.⁹ This pivotal role is governed by Articles 53 and 54 of the KPK.

Exercising the right to become an auxiliary prosecutor is highly recommended and represents one of the most vital procedural steps a victim can take to protect their interests. If the victim fails to obtain this formal status, they participate in the trial merely in the capacity of a standard witness. As a mere witness, the victim is called to the stand, interrogated by the judge, the prosecutor, and the defense counsel, and subsequently dismissed from the courtroom. A witness is entirely stripped of the ability to actively participate in the trial, cross-examine the defendants, question other witnesses, submit new evidentiary motions directly to the judge during the hearings, or, most critically, appeal the final verdict of the court.

Conversely, acquiring the formal status of an auxiliary prosecutor elevates the victim to a full, active party to the proceedings, operating in tandem with the State. The auxiliary prosecutor is entitled to sit at the prosecutor's bench in the courtroom throughout the entire duration of the trial. They possess the independent right to actively interrogate the accused (which allows for direct confrontation regarding the deceptive practices of the commercial entity), call independent

witnesses to the stand, introduce new documentary evidence, and deliver closing arguments summarizing the harm suffered. Crucially, the auxiliary prosecutor holds an independent, unassailable right to appeal the court's final judgment (apelacja) if they deem the imposed sentence too lenient, if the court fails to order full financial restitution, or if the perpetrators are unexpectedly acquitted.

Procedural Requirements, Deadlines, and Pro Se Viability

The declaration to act as an auxiliary prosecutor must be submitted to the adjudicating court within a strictly defined, preclusive deadline. According to the KPK, the declaration must be made before the formal commencement of the judicial process at the main hearing (aż do czasu rozpoczęcia przewodu sądowego na rozprawie głównej).⁹ In procedural practice, this means the declaration must be filed before the public prosecutor stands and formally reads the contents of the indictment in the courtroom.

The law does not prescribe a rigid, formalized template for this declaration. It can be submitted in writing to the court's registry prior to the hearing, or it can be declared orally for the official trial protocol directly to the judge just before the indictment is read.¹⁰ Missing this exact procedural moment is generally fatal to the victim's aspirations of party status, as the deadline is absolute and generally non-restorable, even if the victim lacked legal knowledge.

Crucially regarding the financial burden, taking the procedural step to become an auxiliary prosecutor absolutely does not require the mandatory participation of a professional lawyer. The victim can file the declaration, sit at the bench in court, and exercise all associated rights entirely pro se (on their own behalf). The State, represented by the public prosecutor, continues to carry the primary, heavy burden of proving guilt beyond a reasonable doubt to the judge. The auxiliary prosecutor merely assists, supports, or, when necessary, supplements the public prosecutor's primary efforts to ensure the victim's specific financial and retributive interests are highlighted.

The Ultimate Procedural Backstop: The Subsidiary Indictment

The Polish criminal justice system, acknowledging that the State apparatus may occasionally fail to pursue legitimate claims due to resource constraints or differing legal interpretations, incorporates a powerful fail-safe mechanism. This mechanism, known as the subsidiary indictment (subsidiarny akt oskarżenia), allows a determined victim to force a trial when the State refuses, and is governed by Article 55 of the KPK.

The Double-Refusal Prerequisite

A victim cannot arbitrarily bypass the public prosecutor and immediately file a subsidiary indictment with the court. The extraordinary right to act as a subsidiary prosecutor only crystallizes after a specific, highly structured two-tiered exhaustion of remedies. The procedural sequence unfolds precisely as follows:

1. The public prosecutor issues a formal decision to discontinue the investigation (umorzenie).
2. The victim files a successful interlocutory appeal against this decision to the court.

3. The court agrees with the victim, formally overturns the discontinuance, and orders the prosecutor to conduct further, specific investigative actions.
4. The prosecutor conducts the mandated actions but subsequently issues a *second* formal decision to discontinue the investigation, maintaining that grounds for an indictment still do not exist.

Only after this second, formalized refusal by the prosecuting authority does the victim gain the extraordinary right to step entirely into the shoes of the public prosecutor and file a subsidiary indictment directly with the court.¹¹ This action effectively forces the initiation of a full criminal trial, with the victim acting as the sole prosecuting entity against the alleged perpetrators.

The Doctrine of *Przymus Adwokacko-Radcowski*

Unlike the accessible role of the auxiliary prosecutor, the drafting and filing of a subsidiary indictment trigger one of the rare instances of mandatory professional legal representation (*przymus adwokacko-radcowski*) in Polish criminal procedure.¹²

Under Article 55 § 2 of the KPK, a subsidiary indictment cannot be drafted by a layperson; it must be authored, prepared, and physically signed by an authorized legal professional—specifically an advocate (*adwokat*) or a legal advisor (*radca prawny*).¹¹ A document submitted directly by the victim without the signature of a certified professional is deemed legally defective and will be rejected by the court.

The doctrinal rationale behind this stringent requirement is multi-faceted. It serves as a necessary filter against frivolous, vexatious, or legally groundless private prosecutions overwhelming the judicial system. Furthermore, it ensures that an indictment—which carries the profound weight of forcing an individual into a criminal trial with the potential for imprisonment—meets the highest substantive and formal legal standards.¹² If the proceedings reach this specific backstop mechanism, the victim genuinely cannot proceed on a DIY basis; the retention and compensation of professional counsel becomes an absolute statutory necessity.

Navigating Legal Representation: The Role of the *Pełnomocnik*

While the State runs the core prosecution, a victim may understandably desire professional guidance to navigate the procedural complexities, draft sophisticated evidentiary motions, and conduct aggressive cross-examinations during the trial. Such an attorney acts as the victim's formal representative (*pełnomocnik*).

Optional vs. Mandatory Representation

As firmly established in the preceding analysis, retaining a *pełnomocnik* is entirely optional during the standard investigative phase and during a trial where the public prosecutor leads the case.¹³ The victim can exercise all rights, including filing the initial complex complaint, demanding file access, and acting actively as an auxiliary prosecutor, without the involvement of an attorney. Professional representation only becomes a mandatory necessity if the case reaches the extremity of a subsidiary indictment¹¹, or if the victim wishes to file an extraordinary

cassation appeal to the Supreme Court after the standard appellate process concludes.¹⁴

Eligibility for Court-Appointed Counsel (Pełnomocnik z Urzędu)

A victim who wishes to have professional representation to maximize their strategic position but genuinely lacks the financial resources to hire private commercial counsel is not left without recourse. The Polish Code of Criminal Procedure explicitly guarantees access to court-appointed counsel (pełnomocnik z urzędu) under Article 78 § 1 in conjunction with Article 88 § 1 of the KPK.¹²

The statutory prerequisite for securing a court-appointed lawyer is an inability to bear the costs of legal representation without suffering a serious detriment to the essential maintenance of oneself and one's family (bez poważnego uszczerbku dla niezbędnego utrzymania siebie i rodziny).¹⁷ It is vital to note that this is a stringent means-tested standard, not an absolute test of utter destitution.

To apply for this state-funded assistance, the victim must submit a formal written application (wniosek o ustanowienie pełnomocnika z urzędu) accompanied by a highly detailed, standardized declaration regarding their family status, assets, income, and sources of maintenance (oświadczenie o stanie rodzinnym, majątku, dochodach i źródłach utrzymania).¹⁸ This declaration is an exhaustive financial disclosure. It requires the sworn detailing of all real estate holdings, vehicles, bank account balances, monthly income from all sources, and fixed monthly liabilities including rent, utilities, medical expenses, and outstanding debt obligations.¹⁹

Jurisdictional Nuances and the Challenge of Foreign Residence

The judicial or prosecutorial authority responsible for reviewing the application and appointing the counsel shifts depending on the current phase of the proceedings. During the preparatory phase (the police investigation), the application is reviewed and decided upon by the prosecutor leading the case. During the trial phase, the decision rests entirely with the competent adjudicating court.¹³

Being a foreign resident deriving income from abroad—such as a Swedish national residing in Warsaw or receiving income denominated in foreign currency—introduces significant practical complexities to the means test. Polish prosecutors and judicial bodies inherently assess "essential maintenance" through the lens of local Polish socio-economic standards and the national cost of living. An income that appears modest, strained, or barely sufficient in a high-cost environment like Sweden might mathematically translate to a figure that exceeds the Polish statutory minimums or average national wages. This disparity can easily lead a prosecutor or court to erroneously assume the victim possesses sufficient disposable income to hire private local counsel.

To counteract this structural bias, the foreign resident must meticulously and proactively document their fixed living expenses in their actual place of residence (e.g., Warsaw). The financial declaration must explicitly demonstrate that after paying necessary, localized life expenses—which may include high expatriate housing costs or unavoidable international obligations—the remaining disposable income is genuinely insufficient to cover standard Polish commercial legal fees. Producing sworn translations of foreign tax returns, employment

contracts, and localized rental agreements is often necessary to substantiate these complex financial realities to the Polish authorities.

Logistical Realities: Distance, Testimony, and the Principle of Directness

A foreign victim residing in Warsaw, dealing with a complex fraud potentially jurisdictionally anchored elsewhere in the country (for instance, Kraków, where the perpetrators might be located or where the corporate entity is registered), faces severe logistical friction. The Polish procedural framework, however, provides specific, modern mechanisms designed to mitigate the burdens of physical distance and jurisdictional disparity.

The Absolute Obligation to Testify

Under the strict tenets of Article 177 § 1 of the KPK, every single person formally summoned as a witness has an absolute, overriding legal obligation to appear before the summoning authority and provide truthful testimony.²¹ A victim reporting a high-value economic crime will inevitably and necessarily be summoned to testify in exhaustive detail regarding the negotiation of the transaction, the specific communications with the perpetrators, the exact nature of the deceit, and the resulting financial damage. Ignoring a formal summons from the police, prosecutor, or court is not an option; it can result in escalating financial penalties (*grzywna*) or, in extreme cases of contumacy, forced physical apprehension and delivery by the police apparatus. Crucially, providing testimony merely "in writing" from abroad or from a home office is strictly prohibited under Polish criminal procedure. The system relies heavily on the principle of directness (*zasada bezpośredniości*). Testimony must be interactive and contemporaneous, allowing the adjudicating authority, the prosecutor, and the defense counsel to ask clarifying questions in real-time, confront the witness with documentary evidence, and directly observe the witness's demeanor and credibility.

The Videoconferencing Solution

To alleviate the severe financial and temporal burden of repeated, cross-country travel for witnesses residing far from the jurisdiction of the investigation or trial, Article 177 § 1a of the KPK permits a modern technological alternative. It allows for the interrogation of a witness using advanced technical devices that enable the procedural activity to be conducted at a distance, with the mandatory requirement of simultaneous direct transmission of both high-quality image and sound (videoconferencing).²¹

During the preparatory phase, the prosecutor leading the investigation is directly responsible for ensuring the technical conditions and arranging the facilities for such a remote hearing.²¹ During the trial phase, this mechanism is frequently utilized when the distance between the witness's residence and the adjudicating court poses a significant, documented hardship.

In procedural practice, a victim residing in Warsaw would proactively file a formal request to be heard via videoconference (*wniosek o przesłuchanie w drodze wideokonferencji*) with the authority in Kraków.²³ If the request is granted—which is highly likely given the distance and the status as a victim—the victim would not travel to Kraków. Instead, they would be directed to

travel to a designated local District Court within Warsaw. From a specially equipped, secure room there, overseen by a local judicial official (to verify identity and ensure the integrity of the testimony without coercion), the victim would provide testimony via a live, encrypted audio-visual link directly to the main courtroom or prosecutor's office in Kraków. This mechanism entirely eliminates the need for exhaustive cross-country travel while perfectly satisfying the procedural requirement for direct, interactive oral testimony.

Surmounting the Language Barrier: The State's Financial Obligations

A foundational guarantee of a fair trial, aligned intricately with both domestic Polish constitutional law and European human rights standards, is the fundamental right to comprehend the proceedings. For a foreign victim who does not possess a legal command of the Polish language, this protection is paramount.

Under Article 204 § 1 of the KPK, the authorities are legally mandated to summon a sworn, certified interpreter (*tłumacz przysięgły*) if there is a need to interrogate a person who does not speak the Polish language sufficiently to understand the legal nuances of the proceedings.²⁵

Furthermore, Article 204 § 2 imposes an identical mandate for the use of an interpreter if there is a need to translate a physical or digital document drawn up in a foreign language into Polish for use as evidence, or conversely, to familiarize a non-Polish speaking party with the content of Polish evidence being conducted.²⁵

Crucially regarding the victim's financial exposure, the heavy costs associated with the participation of highly specialized sworn interpreters and the certified translation of complex evidentiary documents are statutorily classified as expenditures of the State Treasury (*wydatki Skarbu Państwa*).²⁶ The victim is absolutely not required to independently hire and compensate an interpreter for official police interviews, prosecutorial hearings, or court trials; the authorities will autonomously summon a certified professional from the official registry and cover their remuneration directly from state funds.²⁶

However, a critical strategic nuance exists regarding documentary evidence at the very inception of the case. When the victim initially files the notification of the crime, they must provide preliminary evidence to convince the authorities that a crime likely occurred. If this evidence consists of emails in Swedish or English, foreign bank statements, or international commercial invoices, they are presenting private, unverified documents. While the State will eventually translate crucial documents necessary for the formal investigation, submitting a complaint entirely in a foreign language may result in severe administrative delays or misunderstandings, as the intake police officers cannot immediately comprehend the supporting evidence.

Therefore, a highly pragmatic, albeit technically optional, initial investment is securing private, sworn translations of the most critical foundational documents (e.g., the fraudulent commercial contract, the primary bank transfer receipt) before filing the initial complaint. Providing these key documents already translated ensures immediate comprehension and rapid activation of the state machinery. Once the investigation is formally underway, any subsequent translation of foreign evidence demanded by the prosecutor is entirely financed by the State.³⁰

Comprehensive Financial Architecture and Cost Projections

The decision to rely entirely on the State apparatus versus retaining private legal counsel drastically alters the financial risk profile of the entire endeavor. A granular analysis of the specific out-of-pocket costs associated with both trajectories reveals the stark economic divergence between the two approaches.

Reimbursement of Statutory Expenses for Witnesses

Regardless of whether the victim is represented by counsel or acts *pro se*, certain unavoidable logistical costs generated by mandatory physical participation in the process are explicitly reimbursable by the State. Under the provisions of Article 618a of the KPK, a witness is entitled to the reimbursement of travel costs from their actual place of residence to the specific location of the procedural activity.²⁹

This state reimbursement covers genuinely incurred, rational, and purposeful travel expenses.³² For instance, the cost of a standard intercity train ticket (typically second class, unless exceptional circumstances dictate otherwise) or fuel costs calculated according to strict statutory mileage rates for a private vehicle will be refunded. To secure this, the victim must submit a formal, documented request (*wniosek o zwrot kosztów podróży*) supported by physical receipts, tickets, or travel logs.³³ This request must generally be submitted within a preclusive period of 3 days following the conclusion of the procedural activity.³³ Furthermore, witnesses are entitled to compensation for lost earnings resulting from their mandatory attendance, though this is heavily capped at a strict statutory daily limit linked to national averages.³⁴

Detailed Cost Breakdown: State Reliance vs. Private Representation

The following comparative analysis details the extreme financial divergence between the *pro se* (DIY) track and the private representation track in a Polish criminal proceeding. The data contrasts the minimal logistical costs of relying on the State against the significant expenditure of hiring a *pełnomocnik*, comparing both the theoretical statutory minimums and the actual market rates.

Cost Category / Scenario	DIY Track (State Reliance)	Lawyer: Statutory Minimums	Lawyer: Realistic Market Rates
Initial Filing Fee	0 PLN	0 PLN	0 PLN
Sworn Translations (Initial)	300 – 800 PLN (Optional but recommended)	Covered in legal prep (or billed as disbursement)	Billed as disbursement (300 – 800 PLN)

Investigation Phase Representation	0 PLN	600 PLN ¹⁴	3,000 – 6,000 PLN
Trial Phase Representation (1st Inst.)	0 PLN	840 PLN ³⁷	5,000 – 10,000 PLN
Residual Travel/Logistics	0 – 300 PLN	0 – 300 PLN	0 – 300 PLN
Total Estimated Financial Exposure	300 – 1,100 PLN	~1,440 PLN + Disbursements	8,000 – 16,000+ PLN

Analyzing the Financial Data

If the victim acts entirely pro se, leveraging the ex officio obligations of the State and the powerful rights of an auxiliary prosecutor, the foundational cost is effectively zero. There are no court fees required to file a notification of a crime, nor are there administrative fees to submit evidentiary motions or declare oneself an auxiliary prosecutor. The realistic out-of-pocket costs on this track are strictly limited to the peripheral logistical expenditures detailed in the table: the initial optional translations and residual travel costs not fully covered by the statutory reimbursement rates.

If the victim elects to hire a private attorney to oversee the case, the financial paradigm shifts entirely. Legal fees in Poland operate within a free market, though the Ministry of Justice establishes baseline statutory minimum rates (stawki minimalne) for specific procedural actions.¹⁴ As indicated in the data, the statutory minimum for investigation oversight is a mere 600 PLN, and 840 PLN for trial representation.¹⁴

However, these statutory minimums rarely reflect the actual commercial rates charged by specialized criminal-economic law firms. In the reality of complex commercial litigation, particularly involving high-value economic fraud under Article 286 KK in major urban centers, the actual market rates commanded by specialized practitioners vastly exceed these statutory floors. A realistic market projection for full end-to-end representation in a 155,000 PLN fraud case ranges between 8,000 and 16,000 PLN, typically structured as flat fees for specific stages or billed at substantial hourly rates.

Strategic Synthesis and Conclusion

For a foreign resident navigating the aftermath of a commercial fraud in Poland, the architectural design of the Polish Code of Criminal Procedure offers profound structural advantages. The State's unwavering adherence to the principle of legalism mandates that the prosecuting authorities absorb the overwhelming burden of investigation and the heavy financial costs

associated with securing evidence, compelling testimonies, and providing sworn translations. The victim is structurally protected from being forced into the arduous and expensive role of a private prosecutor. By strategically utilizing the right to submit precise evidentiary motions during the investigation and securing the formal status of an auxiliary prosecutor at the dawn of the trial phase, the victim can exert significant, consequential influence over the proceedings while relying entirely on the State's vast resources. The financial exposure on this path is negligible, restricted primarily to preliminary document translation and highly localized logistics, particularly when the right to distance testimony via videoconferencing is successfully invoked. Retaining a private attorney—while undeniably beneficial for navigating procedural minutiae, providing emotional distance, and executing rigorous cross-examinations—remains a purely optional luxury unless the extreme, multi-stage threshold of a subsidiary indictment is breached.

Works cited

1. ODPOWIEDZIALNOŚĆ KARNA ZA OSZUSTWO (art. 286 k.k.), accessed on June 3, 2026, <https://www.karh.pl/prawo-karne-gospodarcze/oszustwo-art-286-k-k/>
2. R590-286. Minimum Standards for Short-Term Limited Duration Health Insurance - Utah Office of Administrative Rules, accessed on June 3, 2026, <https://adminrules.utah.gov/public/rule/R590-286/Current%20Rules>
3. Utah Admin. Code R590-286-4 - Prohibited Provisions | State Regulations | US Law, accessed on June 3, 2026, <https://www.law.cornell.edu/regulations/utah/Utah-Admin-Code-R590-286-4>
4. Chapter 286: Taxation - City of Westbrook, ME - eCode360, accessed on June 3, 2026, <https://ecode360.com/35600327>
5. ODPOWIEDZIALNOŚĆ KARNA WÓJTA – ANALIZA PRAKTYCZNA NA PODSTAWIE WYNIKÓW PRZEPROWADZONYCH KONTROLI PRZEZ NAJWYŻSZĄ IZBĘ K - Roczniki Administracji i Prawa, accessed on June 3, 2026, <https://rocznikiadministracjiiprawa.publisherspanel.com/api/files/view/2576425.pdf>
6. Pouczenie o uprawnieniach i obowiązkach pokrzywdzonego, accessed on June 3, 2026, <https://sppila.policja.gov.pl/download/301/323322/Pouczenieoupawnieniachibowiazkachpokrzywdzonego.pdf>
7. Dostęp do akt – Prawo karne – poradnik prawny, accessed on June 3, 2026, <https://karne.pl/dostep-do-akt/>
8. Art. 159. Na odmowę udostępnienia akt w postępowaniu przygotowawczym przysługuje stronom zażalenie; na zarządzenie prokuratora zażalenie przysługuje do sądu.. Ustawa z dnia 6 czerwca 1997 r. Kodeks postępowania karnego - kpk - przepisy.gofin.pl, accessed on June 3, 2026, <https://przepisy.gofin.pl/przepisyyno.223.76109.0.0.20131120.3.0.html>
9. [Uboczny oskarżyciel posiłkowy, termin] - Art. 54. - Kodeks postępowania karnego. - Dz.U.2026.490 t.j. - LEX, accessed on June 3, 2026, <https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/kodeks-postepowania-karnego-16798685/art-54>
10. Termin na zgłoszenie przez pokrzywdzonego wniosku o działaniu jako oskarżyciel

- posiłkowy - adwokat Tomasz Janiak, accessed on June 3, 2026,
<https://adwokat-janiak.pl/blog/67-termin-na-zgloszenie-przez-pokrzywdzonego-wniosku-o-dzialaniu-jako-oskarzyciel-posilkowy>
11. [Subsydiarny oskarżyciel posiłkowy] - Art. 55. - Kodeks postępowania karnego. - Dz.U.2026.490 t.j. - OpenLEX - ustawy, accessed on June 3, 2026,
<https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/kodeks-postepowania-karnego-16798685/art-55>
 12. Czym jest tzw. przymus adwokacki w sprawach karnych?, accessed on June 3, 2026,
<https://sprawakarna.com/blog/czym-jest-tzw-przymus-adwokacki-w-sprawach-karnych>
 13. [Udział pełnomocnika] - Art. 87. - Kodeks postępowania karnego. - Dz.U.2026.490 t.j. - LEX, accessed on June 3, 2026,
<https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/kodeks-postepowania-karnego-16798685/art-87>
 14. Ile kosztuje adwokat? Cennik usług adwokackich 2026, accessed on June 3, 2026, <https://adwokaci-ks.pl/cennik/>
 15. [Uprawnienie do pełnienia roli pełnomocnika] - Art. 88. - Kodeks postępowania karnego. - Dz.U.2026.490 t.j. - LEX, accessed on June 3, 2026,
<https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/kodeks-postepowania-karnego-16798685/art-88>
 16. Pełnomocnik z urzędu – pomoc prawna dla strony w postępowaniu cywilnym i karnym, accessed on June 3, 2026,
<https://116sos.pl/artykuly/prawo/pełnomocnik-z-urzedu-pomoc-prawna-dla-strony-w-postepowaniu-cywilnym-i-karnym>
 17. WZÓR, accessed on June 3, 2026,
https://bip.warszawa.so.gov.pl/uploads/files/sady-rejonowe/srodmiescie/SRS_Wnioski_POI/13b%20wniosek%20o%20ustanowienie%20obro%C5%84cy-pe%C5%82nomocnika%20z%20urz%C4%99du%20-%20wykroczenia.rtf
 18. WZÓR 6a Wniosek o ustanowienie pełnomocnika z urzędu - Sąd Okręgowy Warszawa-Praga w Warszawie, accessed on June 3, 2026,
<https://warszawapraga.so.gov.pl/uploads/files/Wzory-wnioskow/wz%C3%B3r%206a%20wniosek%20o%20obro%C5%84c%C4%99%20%2C%20pe%C5%82nomocnika%20z%20urz%C4%99du.doc>
 19. WZÓR OŚWIADCZENIE O STANIE RODZINNYM, MAJĄTKU, DOCHODACH I ŹRÓDŁACH UTRZYMANIA POUCZENIE 1. Sąd, do którego jest składa - Gov.pl, accessed on June 3, 2026,
<https://www.gov.pl/attachment/94f01e3c-008f-4c74-9699-c9dd278d15d8>
 20. Wyznaczenie pełnomocnika z urzędu - LEX, accessed on June 3, 2026,
<https://sip.lex.pl/procedury/wyznaczenie-pełnomocnika-z-urzedu-1610617855>
 21. [Obowiązek złożenia zeznań. Miejsce przesłuchania] - Art. 177. - Kodeks postępowania karnego. - Dz.U.2026.490 t.j. - LEX, accessed on June 3, 2026,
<https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/kodeks-postepowania-karnego-16798685/art-177>
 22. Świadek w procesie karnym - Prokuratura Okręgowa w Radomiu - Portal Gov.pl,

- accessed on June 3, 2026,
<https://www.gov.pl/web/po-radom/swiadek-w-procesie-karnym>
23. Wniosek o przesłuchanie świadka w drodze wideokonferencji (art. 177 § 1a k.p.k.) - LEX, accessed on June 3, 2026,
<https://sip.lex.pl/wzory-i-narzedzia/wzory/wniosek-o-przesluchanie-swiadka-w-dro-dze-wideokonferencji-art-177-1a-k-p-k-319092960>
 24. Pobierz wniosek o przesłuchanie świadka online w sprawie karnej - Pasternak LEGAL, accessed on June 3, 2026,
<https://pasternaklegal.pl/bazawiedzy/wniosek-o-przesluchanie-swiadka-online/>
 25. [Udział tłumacza] - Art. 204. - Kodeks postępowania karnego. - Dz.U.2026.490 t.j. - LEX, accessed on June 3, 2026,
<https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/kodeks-postepowania-karnego-16798685/art-204>
 26. Art. 619. - [Tymczasowe pokrywanie wydatków, koszty postępowania mediacyjnego, koszty udziału tłumacza] - Kodeks postępowania karnego. - ustawy, accessed on June 3, 2026,
<https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/kodeks-postepowania-karnego-16798685/art-619>
 27. Prawo do udziału tłumacza jako jedna z przesłanek rzetelnego procesu karnego The Right for Interpreter Assistance - UAM, accessed on June 3, 2026,
<https://pressto.amu.edu.pl/index.php/il/article/download/9242/8965>
 28. CZY TŁUMACZ PRZYSIĘGŁY MOŻE POZWAĆ POLICJĘ O ZAPŁATĘ WYNAGRODZENIA ZA TŁUMACZENIE I ZALEGŁE ODSETKI? (CHARAKTER STOS, accessed on June 3, 2026,
http://tepis.org.pl/wp-content/uploads/przepisy-prawa/Czy_TP_moze_pozwac_policje_o_zaplate_wynagrodzenia.pdf
 29. Przepisy ogólne - Rozdział 68 - Kodeks postępowania karnego. - Dz.U.2026.490 t.j. - ustawy, accessed on June 3, 2026,
<https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/kodeks-postepowania-karnego-16798685/dz-14-roz-68>
 30. Krystyna Patora SPORNE KOSZTY TŁUMACZY W POSTĘPOWANIU KARNYM (ANALIZA PRZYPADKU) - CEJSH, accessed on June 3, 2026,
https://cejsh.icm.edu.pl/cejsh/element/bwmeta1.element.ojs-doi-10_21697_zp_2022_22_4_02/c/articles-62415001.pdf.pdf
 31. Krystyna Patora SPORNE KOSZTY TŁUMACZY W POSTĘPOWANIU KARNYM (ANALIZA PRZYPADKU) - Czasopisma UKSW, accessed on June 3, 2026,
<https://czasopisma.uksw.edu.pl/index.php/zp/article/download/11224/9756/20466>
 32. [Zwrot świadkowi kosztów podróży, noclegu i utrzymania] - Art. 618a. - Kodeks postępowania karnego. - Dz.U.2026.490 t.j. - LEX, accessed on June 3, 2026,
<https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/kodeks-postepowania-karnego-16798685/art-618-a>
 33. Zwrot kosztów podróży świadka do sądu - ePorady24.pl, accessed on June 3, 2026,
<https://www.eporady24.pl/zwrot-kosztow-podrozy-dla-swiadka.pytania.6.66.24653.html>

34. ZWROT KOSZTÓW PRZEJAZDU DLA ŚWIADKA/BIEGŁEGO Uprzejmie proszę o zwrot należności z tytułu kosztów przejazdu na trasie: - Gov.pl, accessed on June 3, 2026,
<https://www.gov.pl/attachment/090e5d15-4c87-4c2e-909e-b5582737ce02>
35. Wniosek dla świadka o zwrot kosztów podróży/utraconego wynagrodzenia - Sąd Okręgowy w Warszawie, accessed on June 3, 2026,
<https://bip.warszawa.so.gov.pl/attachments/download/4247>
36. 24/K/UP/K - Ministerstwo Sprawiedliwości, accessed on June 3, 2026,
https://wsoi.ms.gov.pl/Data/Files/_public/uslugi-podstawowe/sprawy-karne/6v0/24_k_up_k-karta.pdf
37. Stawki minimalne w sprawach karnych i w sprawach o wykroczenia - Rozdział 3 - Opłaty za czynności adwokackie. - Dz.U.2026.215 t.j. - LEX, accessed on June 3, 2026,
<https://sip.lex.pl/akty-prawne/dzu-dziennik-ustaw/oplaty-za-czynnosci-adwokackie-18236070/roz-3>